

SUBSIDIARY LEGISLATION 595.27

**MALTA BUSINESS REGISTRY
(ESTABLISHMENT AS AN AGENCY) ORDER**

30th April, 2018

LEGAL NOTICE 144 of 2018, as amended by Legal Notices 137 of 2019 and 180 of 2020 and XXIV of 2022.

- 1.** The title of this order is the Malta Business Registry (Establishment as an Agency) Order. Citation.
Amended by:
L.N. 137 of 2019.
- 2.** (1) Any reference in this order to "the Act" shall be construed as a reference to the Companies Act and subject to the provisions of sub article (2), the provisions of article 2 of the Act shall also apply to this order. Interpretation.
Cap. 386.
Amended by:
L.N. 137 of 2019;
L.N. 180 of 2020.
- (2) In this Order, unless the context otherwise requires –
- "Administration Act" means the Public Administration Act; Cap. 595.
- "Agency" means the Malta Business Registry established by this order;
- "Agency Agreement" means the agreement as provided for in article 30(1) of the Administration Act; Cap. 595.
- "MFSA" means the Malta Financial Services Authority;
- "Minister" means the Minister responsible for the registration of commercial partnerships;
- "Permanent Secretary" means the Permanent Secretary of the Ministry for the Agency, if in office and if not in office, the Minister.
- 3.** There shall be established an Agency, to be known as the Malta Business Registry which shall have all the duties and functions pertaining to the Registrar of Companies under the Act and any other applicable law. Establishment of
the Registry of
Companies
Agency.
Amended by:
L.N. 137 of 2019.
- 4.** The Minister responsible for the Agency shall be the Minister responsible for the registration of commercial partnerships in accordance with the Act. Minister
responsible for
Agency.
Amended by:
L.N. 137 of 2019;
L.N. 180 of 2020.
- 5.** The operations of the Agency shall be carried out in accordance with an Agency Agreement to be agreed upon between the Permanent Secretary and the Agency. Agency agreement.

Accounts, audits and financial agreements of the Agency.
Cap. 601.

6. The Agency shall be governed by the provisions of the Public Finance Management Act unless otherwise stated in the Agency Agreement between the Permanent Secretary and the Agency, in which case the provisions of the Agency Agreement shall prevail.

The Registrar of Companies.

7. (1) The Agency shall be headed by the Registrar of Companies, to be appointed by the Minister and who shall perform all the functions and duties of the Chief Executive Officer as stipulated in the Administration Act.

(2) The legal and judicial representation of the Agency shall be vested in the Registrar of Companies.

Deputy Registrar.

8. The Minister shall appoint a person to aid the Registrar of Companies in the execution of his duties who shall be designated as the Deputy Registrar.

Official receiver.
Added by:
L.N. 137 of 2019.

9. The Minister shall appoint a person to be the official receiver for the purposes of the Act.

Establishment of the Insolvency and Receivership Service.
Added by:
XXIV.2022.52.

9A. (1) The Agency shall establish and organise its units and sections as appropriate in order to exercise its functions, and shall establish *inter alia*, a section to be known as the Insolvency and Receivership Service.

Cap. 631.
Cap. 632.

(2) The section to be known as the Insolvency and Receivership Service shall have those functions, duties and powers assigned to it and to the official receiver by the Act, the Pre-Insolvency Act, 2022, the Insolvency Practitioners Act, 2022 and any applicable laws and regulations.

Advisory Board.
Renumbered:
L.N. 137 of 2019.

10. (1) The Minister responsible for the Agency may establish an Advisory Board to advise the Registrar of Companies in the discharge of his duties.

(2) The Advisory Board established under this article shall be chaired by the Registrar of Companies and shall consist of not less than two (2) and not more than four (4) members appointed by the Minister responsible for the Agency.

(3) The remuneration paid to members of the Agency Advisory Board shall be in accordance with any directives and guidelines issued by the Permanent Secretary in relation thereto.

Employees of the Agency.
Renumbered:
L.N. 137 of 2019.

11. (1) All employees and any other public officers currently deployed within the MFSA performing duties concomitant with the functions of the Agency may be regarded as employees of the Agency as established by virtue of this order under the same terms and conditions prevailing at the date of coming into force of this order:

Provided that employees and public officers currently deployed within the MFSA may also retain their current position of employment with the MFSA:

Provided further that employment contracts of employees and public officers desirous of retaining their employment with the MFSA shall remain in force between the relative employee and the MFSA or the relative public officer and the MFSA, as applicable, and that employee or public officer shall in no way be regarded as an employee of the Agency.

(2) The employment contracts entered into between, on the one hand, the employees of the Agency within the MFSA and the MFSA, on the other part, shall continue to be in force as if they had been entered into by the Agency as established by this order and any collective agreement in force prior to the coming into force of this order which affects the rights and status of the same employees shall continue to be in force as if it had been entered into by the Agency.

(3) The Agency shall have the authority to engage its own employees.

12. The Agency shall, as from the coming into force of this order, assume responsibility for all assets, liabilities and obligations, previously held or entered into by the MFSA and emanating or arising from the functions of the Agency.

Transfer of assets and liabilities.
Renumbered:
L.N. 137 of 2019.

13. The Agency, the members of the Advisory Board, and the officers and employees of the Agency, shall not be liable in damages or otherwise for anything done or omitted to be done in the discharge or purported discharge of any function under this order, the Act or any other legislation administered by the Agency, or otherwise in the exercise of their official duties, unless the act or omission is shown to have been done or omitted to be done, as the case may be, in bad faith.

Exemption from liability.
Added by:
L.N. 137 of 2019

14. The Agency shall be exempt from any liability for the payment of income tax, duty on transfers and documents, and customs and excise duty, under any law for the time being in force.

Exemption from taxes.
Added by:
L.N. 137 of 2019